Hi, Neighbor!

Silver Creek April 2024 Newsletter

APRIL EVENTS:

April 3 - Salad & Bunko – 6:30 pm
April 8 - Community Dinner – 6:00 pm
April 18 - HOA Board Meeting – 6:30 pm

LADIES SALAD & BUNKO NIGHT, Wednesday April 3rd at the Clubhouse. Salad at 6:30, Bunko at 7:00. Please join us for a casual evening of food, friendship and Bunko. We'll teach you to play. Questions? Contact Carla Peay at 435-705-4327.

SPRINGTIME DINNER
Everyone invited: Monday, April 8, 6:00 pm.
Last names A-L: please bring desserts.
Last names M-Z: please bring fruit or salads.

SINCERE CONDOLENCES to friend and neighbor Jan Peterson, along with her daughter Jenn, upon the passing of Jan's husband Bob on March 20th. Jan and Jenn have been Bob's tender care-givers for the past six years. A celebration of Bob's life will be held later.

NEIGHBORHOOD WATCH Silver Creek is a safe and wonderful place to live, but no place is immune from crimes of opportunity.

In recent months, two homes in our community were broken into while owners were away. Very little of value was taken from either home.

St. George Police Department Public Information Officer Tiffany Mitchell says such burglaries are most often committed by persons looking for money or controlled substances or anything easily convertible to cash.

In one of the incidents in Silver Creek, the owner had not visited the home for several months and it is not known precisely when the break-in occurred.

A neighbor noticed that a screen was off the home's back window and did what good neighbors do—called the homeowner to say something didn't look quite right. The homeowners contacted St. George police who investigated the break-in.

They said the intruder had broken the lock on a back patio window to get inside.

Officer Mitchell suggests placing wood dowels in window tracks as a back-up to locks. She says indoor and outdoor lighting also act as deterrents.

As it happened, the garage security lights at the burglarized home had malfunctioned, and the yard had not been illuminated.

Mitchell says relationships are a key to discouraging crime. "At a minimum, get to know the people around you. Get a cell phone number. Let each other know when you might be away."

A few takeaways—

• Lighting outside and inside a house is a deterrent to crime.
• An inexpensive electrical timer on an indoor lamp or two may be a good idea, especially for the roughly half of all Silver Creek homeowners who are part-time residents.
• Secure all windows and doors.
• Home security systems are another approach, at considerably greater expense.
• Neighbors who look out for each other are simply irreplaceable.

WATER WATCH Sprinkler systems will be turned on over the next two weeks. Timers will be set to run once a week until the weather warms up.

Please do not adjust your sprinkler clocks. If you have special needs for water or if you see sprinklers needing repair, please submit a request on the CAM (Community Association Management) portal.

The only time you should see landscapers in your backyard should be the day it is mowed. On those days, crews should trim and blow the concrete to clean the grass clippings. If this is not done, please notify CAM through the portal: **camutah.com**.

GOT A QUESTION? If you have a burning question about your Silver Creek HOA's policies and procedures and you've tried but simply can't find the answer, email your question to the HOA Board at silvercreekfaq@outlook.com.

Please give us three business days and we'll try to point you in the right direction to find your answer.

"governance"

(*And why should you care?*)

Your elected HOA Board of Trustees is devoting considerable time, effort and deliberation these days to creating effective **governance**.

Governance is the process of making and enforcing decisions within an organization.

Governance includes decision-making, rule-setting, and enforcement mechanisms to guide the functioning of the organization.

(Some words here are borrowed from Wikipedia.)

- Effective **Governance** is essential for maintaining **order**, achieving **objectives**, and addressing the **needs** of the community and its members.

- Effective **Governance** promotes **transparency**, fosters **trust** among stakeholders, and **adapts** to changing circumstances, **ensuring** the organization remains **responsive** and **resilient** in **achieving** its **goals**.

As a not-for-profit association, Silver Creek is guided and bound by **Governing Documents**.

Those **Documents** consist of the

ARTICLES OF INCORPORATION

Articles of Incorporation and the **Declaration**, or

DECLARATION (CC&Rs)

"Covenants, Conditions and Restrictions."

These documents are, in effect, our Constitution.

They establish rights, responsibilities, powers and limitations upon homeowners and upon their representatives acting as the HOA Board.

As with the United States Constitution, those permanent documents are the basis for all other decisions, and they not easily changed.

The next level of documents are **By-laws**

BY-LAWS

that regulate how the Board is to function.

And, finally, the Board may adopt written

RULES

Rules to promote the welfare and protection of our Silver Creek community. Those rules must fall within the limitations imposed by the other documents.

That's a lot of information to get your head around! Just ask any member of your HOA Board!

Over the years, some actions may have been taken by well-intended homeowners and by volunteer boards that did not conform with Silver Creek's governing documents.

Here's what the Board and I would like you to know:

Your current elected Board of Trustees is committed to act in careful compliance with both the letter and the spirit of our governing documents.

We ask for your support and understanding as we work to improve Silver Creek's standard of **Governance** as we move forward together.

Currently, there are certain non-conforming property situations that are beyond the Board's statutory power to approve or to ignore.

Because of that, in the coming weeks you may be asked to vote on an **Amendment** to the **Declaration**. Such an amendment would, in effect, give the Board greater latitude to approve exceptions and loosen architectural standards in the community in ways that would alter the character and uniformity of Silver Creek's design.

If or when you are asked to vote on such an amendment, please study the arguments that will be presented, both for and against. And then, please vote. The outcome, either way, will be extremely significant for Silver Creek's future.

Stan Engh
President, Silver Creek HOA Board of Trustees

IMPROVEMENTS IN PROGRESS

Work is progressing well on repair of the outdoor pool deck that had to be torn up to fix a leaking water line.

The goal is to have the pool back in service next month.

The indoor pool has a new dehumidifying unit.

In March, your Board approved $25,000 for additional upgrades to our pool facilities.

GOT YA' COVERED!

Your HOA Board last week obtained a new annual insurance policy to protect against loss and liability in the Common Areas of Silver Creek.

The insurance purchase represents a $66,845 expense for the Association. That is funded by our monthly HOA fees.

This may be a good time for you to review with your insurance agent how the HOA policy works in tandem with the individual policy you have on your Silver Creek home.

The HOA's policy has a $10-thousand deductible against coverage of your property. You will want to ensure that your individual policy provides adequate —but not duplicate—protection of your home according to your need and level of risk tolerance.